



United States
Attorney's Office
District of Massachusetts



PRESS RELEASE

Six Former eBay Employees Charged with Aggressive Cyberstalking Campaign Targeting Natick Couple



Monday, June 15, 2020

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – Six former employees of eBay, Inc. have been charged with leading a cyberstalking campaign targeting the editor and publisher of a newsletter that eBay executives viewed as critical of the company. The alleged harassment included sending the couple anonymous, threatening messages, disturbing deliveries – including a box of live cockroaches, a funeral wreath and a bloody pig mask – and conducting covert surveillance of the victims.

James Baugh, 45, of San Jose, Calif., eBay's former Senior Director of Safety & Security, was arrested today and charged by criminal complaint with conspiracy to commit cyberstalking and conspiracy to tamper with witnesses.

David Harville, 48, of New York City, eBay's former Director of Global Resiliency, was arrested this morning in New York City on the same charges and will make an initial appearance via videoconference in U.S. District Court in the Southern District of New York.

In addition the following defendants were charged in an Information unsealed today: Stephanie Popp, 32, of San Jose, eBay's former Senior Manager of Global Intelligence; Stephanie Stockwell, 26, of Redwood City, Calif., the former manager of eBay's Global Intelligence Center (GIC); Veronica Zea, 26, of San Jose, a former eBay contractor who worked as an intelligence

analyst in the GIC; and Brian Gilbert, 51, of San Jose, a former Senior Manager of Special Operations for eBay's Global Security Team. They are each charged with conspiracy to commit cyberstalking and conspiracy to tamper with witnesses and will make appearances in federal court in Boston at a later date.

According to the charging documents, the victims of the cyberstalking campaign were a Natick couple who are the editor and publisher of an online newsletter that covers ecommerce companies, including eBay, a multinational ecommerce business that offers platforms for consumer-to-consumer and business-to-consumer transactions. Members of the executive leadership team at eBay followed the newsletter's posts, often taking issue with its content and the anonymous comments underneath the editor's stories.

It is alleged that in August 2019, after the newsletter published an article about litigation involving eBay, two members of eBay's executive leadership team sent or forwarded text messages suggesting that it was time to "take down" the newsletter's editor.

In response, Baugh, Harville, Popp, Gilbert, Zea, Stockwell, and others allegedly executed a three-part harassment campaign. Among other things, several of the defendants ordered anonymous and disturbing deliveries to the victims' home, including a preserved fetal pig, a bloody pig Halloween mask, a funeral wreath, a book on surviving the loss of a spouse, and pornography – the last of these addressed to the newsletter's publisher but sent to his neighbors' homes.

As part of the second phase of the campaign, some of the defendants allegedly sent private Twitter messages and public tweets criticizing the newsletter's content and threatening to visit the victims in Natick. The documents allege that Baugh, Gilbert, Popp and another eBay security employee planned these messages to become increasingly disturbing, culminating with "doxing" the victims (i.e., publishing their home address). It is alleged that the very same group intended then to have Gilbert, a former Santa Clara police captain, approach the victims with an offer to help stop the harassment that the defendants were secretly causing, in an effort to promote good will towards eBay, generate more favorable coverage in the newsletter, and identify the individuals behind the anonymous comments.

The third phase of the campaign allegedly involved covertly surveilling the victims in their home and community. According to the complaint, Harville and Zea registered for a software development conference to explain their trip to Boston on Aug. 15, 2019. Baugh, Harville, and Zea (and later Popp) allegedly drove to the victims' home in Natick several times, with Harville and Baugh intending at one point to break into the victims' garage and install a GPS tracking device on their car. As protection in the event they were stopped by local police, Baugh and Harville allegedly carried false documents purporting to show that they were investigating the victims as "Persons of Interest" who had threatened eBay executives. The victims spotted the surveillance, however, and notified the Natick police, who began to investigate. The police

learned that Zea had rented one of the cars used by the defendants and reached out to eBay for assistance.

Aware that the police were investigating, the defendants allegedly sought to interfere with the investigation by lying to the police about eBay's involvement while pretending to offer the company's assistance with the harassment, as well as by lying to eBay's lawyers about their involvement. At one point, for example, Baugh, Gilbert, Popp, and Stockwell allegedly plotted to fabricate another eBay "Person of Interest" document that could be offered to the police as a lead on some of the harassing deliveries. As the police and eBay's lawyers continued to investigate, the defendants allegedly deleted digital evidence that showed their involvement, further obstructing what had by then become a federal investigation.

The charges of conspiracy to commit cyberstalking and conspiracy to tamper with witnesses each carry a sentence of up to five years in prison, three years of supervised release, a fine of up to \$250,000 and restitution. Sentences are imposed by a federal district court judge based upon the U.S. Sentencing Guidelines and other statutory factors.

U.S. Attorney Andrew E. Lelling; Joseph R. Bonavolonta, Special Agent in Charge of the Federal Bureau of Investigation, Boston Field Division; and Natick Chief of Police James G. Hicks made the announcement today. eBay provided valuable assistance and cooperation with the federal investigation. Assistant U.S. Attorneys Seth B. Kosto and David J. D'Addio of Lelling's Securities, Financial and Cyber Fraud Unit are prosecuting the case.

The details contained in charging documents are allegations. The defendants are presumed innocent unless and until proven guilty beyond a reasonable doubt in a court of law.

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